

CASE INTAKE MEMORANDUM

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INTAKE SUMMARY

Client	Matthew Oliver Reardon
Contact	(832) 880-4970
Intake Score	80 / 100 ACCEPTED HIGH URGENCY
Matter Type	Civil Rights — 42 U.S.C. § 1983
Jurisdiction	Galveston, Texas
New Incident Date	June 22, 2026
Opposing Party	

PRIOR LITIGATION — REARDON v. OSTEEN ET AL.

Case Name	Reardon v. Osteen et al.
Case Number	3:25-cv-00203
Court	U.S. District Court, Southern District of Texas
Filed	June 30, 2025
Presiding Judge	Hon. Jeffrey V. Brown
Magistrate	Andrew M. Edison
Claims	42 U.S.C. § 1983 — False arrest, excessive force, cross-jurisdictional conspiracy, First / Fo
Client's Counsel	Ben Campagna

Named Defendants:

- Officer William Osteen — GPD (central defendant)
- Sergeant Jack Doraty — GPD
- Jacob McDougale — GPD
- Hobby James — GPD
- Kandis Beaveroby JamJG14eette County, MS (cross-state conspiracy)
- Jeff Busby

In December 2023, the Galveston County DA indicted client for Felony DWI (3rd or more) despite clean toxicology results. Attorney Ben Campagna filed a **Franks Hearing motion** on February 25, 2025. Rather than face that hearing — which would have exposed Osteen's numerous contradictory sworn statements — **Galveston County dismissed the felony charge.**

Note: The dismissal of the felony DWI — rather than defending the Franks motion — is strong evidence of consciousness of guilt. Galveston elected to drop the case rather than allow judicial scrutiny of Osteen's sworn statements. The Franks motion is not pending; the criminal case is closed.

LEGAL ANALYSIS — NEW INCIDENT

First Amendment Retaliation: Filming police in a public space is constitutionally protected. An officer's alleged admission that the arrest would not have occurred but for the recording is direct evidence of retaliatory motive. Under *Nieves v. Bartlett* (2019), plaintiff must show the officer's conduct would not have occurred absent retaliatory motive — here, the officer may have provided that admission himself.

Fourth Amendment — Pretextual Stop: An expired tag, while technically a valid basis for a stop, becomes constitutionally suspect when deployed as a pretext immediately following protected activity that officers had just observed.

Witness Intimidation / Obstruction: Client is the active plaintiff in 3:25-cv-00203 against the same police department. Officers arresting him within hours of observing him conduct the same First Amendment activity that is the subject of that lawsuit raises serious questions about witness retaliation and obstruction of pending civil litigation.

Pattern Evidence: This is the second documented instance of Galveston officers targeting Reardon under pretextual circumstances following protected First Amendment activity. The prior dismissal of the felony DWI to avoid a Franks hearing is relevant pattern evidence under Fed. R. Evid. 404(b).

Body Camera / Spoliation: If the officer intentionally deactivated his body camera before making the admission, that may itself constitute a GPD policy violation and will be critical to any spoliation argument.

CLIENT'S OWN WORDS

"I was cop watching yesterday. I was recording some police fucking with somebody at the Walgreens parking lot."

"I'm the plaintiff in a civil rights lawsuit against Galveston right now."

"He even admitted that... I'm sure he had his body cam off when he said it, but he admitted that had I not recorded them, they wouldn't have come after me and arrested me."

RECOMMENDED IMMEDIATE ACTION

- Contact Ben Campagna (counsel in 3:25-cv-00203) before taking any independent action — coordinate to avoid conflicts and align strategy

- Preserve all evidence immediately: client's video, any body cam footage (send litigation hold/preservation letter to GPD), impound records
- Obtain names and badge numbers of the arresting officers from June 22, 2026
- Determine status of expired tag charge — fight or negotiate dismissal
- Determine status and costs of impounded vehicle
- Pull body camera footage via Texas open records request before potential destruction
- Consider filing an amended complaint or new § 1983 action incorporating the June 22 incident as part of the continuing pattern

OUTSTANDING FOLLOW-UP ITEMS

- Names and badge numbers of June 22 arresting officers
- Copy of client's video recording of the Walgreens stop
- Current status of the expired tag criminal charge
- Status and costs related to impounded vehicle
- Confirm "corp" in intake transcript — likely "car"
- Coordinate with Ben Campagna re: 3:25-cv-00203